

with her homework and even advising her on adolescent issues, before he struck. Or a week ago in what is now known as the Mira Road rape case in Mumbai, where the main accused Parag Mhatre, allegedly wooed the victim for over seven months and even promised to marry her. As Deven Bharti, additional commissioner of police, Mumbai (Crime Branch), puts it: "A rape is rarely an impulsive act. The rapist takes advantage of the situation, thinking the victim cannot overpower him, either mentally or physically."

American psychologist Nicholas Groth, director of Forensic Mental Health Associates, who has examined more than 3,000 sex offenders in 25 years of practice, identified three

kinds of rapes: anger, power and sadism. The Swanchetan study follows closely, defining three types: violent, sadistic and fatal. It classified 45 per cent of the rape cases as extremely violent where the victims were dealt severe injuries with concussions on the body; in 15 per cent of the cases rapists indulged in sheer sadism, where they would get turned on by the victim's struggles, while in 5 per cent of the cases, the rapist murdered the victim because of the fear that the matter would be reported. As in one such case in Najafgarh in 2007, where the rapist covered the eyes of the victim with his hand while raping her at a construction site near her house. "I could see the pleading in the eyes, asking

SHINEY AHUJA CASE Mumbai

JUNE 14, 2009

ACCUSED Bollywood actor Shiney Ahuja

DETAILS The 36-year-old actor was charged with raping his 18-year-old domestic help. His wife was not at home.

CURRENT STATUS While preliminary medical reports have indicated that Ahuja is the perpetrator of the crime, DNA reports supporting the theory have yet to come in. Ahuja has been remanded to judicial custody till July 2. Preliminary medical reports say that the actor was not in an inebriated state at the time and that he had minor abrasions on his forearm, which could, perhaps, be the result of a scuffle between him and the young woman.



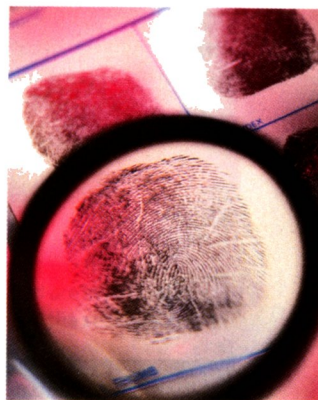
The Legal Loopholes

The law as it operates, is insensitive and loaded against the victim, not the assailant

Rape is considered a behavioural crime. The body of the victim is the site of the crime. It makes the investigation difficult.

Registered under Section 375 of the IPC, rape cases require the victim to make the complaint in person and identify the perpetrator. Those guilty can be awarded a prison term that can last up to 10 years. In some cases, a life sentence has also been awarded. But there are instances where the victims were shooed away by the police as they were alone. In Guntur, a tribal woman who was gangraped in June had to wait an entire day to file her complaint as the police did not believe her. Unlike the US where victims are encouraged to report such a crime directly to the police, the victim here approaches the family first.

For the families who muster enough courage to report the matter, dealing with the police and doctors is a nightmare. Usually, the police are insensitive, rude and oblivious to the victim's state of mind. To establish rape, the victim has



to undergo medical tests that can go on for four hours.

The police have to be alert to false complaints. In December last year, seven men of the Sashastra Seema Bal in Shrawasti district in Uttar Pradesh were booked for raping four girls. It took two weeks to prove that they had been framed. In 2006, an 18-year-old girl in Delhi filed a false report at the behest of her brother that her stepfather had repeatedly raped her.

Confidentiality during the proceedings is another issue. It is a common practice to announce the name of the accused in court where the victim must prove that the rapist sexually penetrated her.